

Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2014

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State of Bihar - Act

Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2014

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Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2014

Rule

BIHAR-ELECTRICITY-REGULATORY-COMMISSION-DELEGATION-OF-FINANCIAL-POWERS-REGULATIONS-2014 of 2014

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Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2014

Published vide Notification No. BERC-Regl-06/2013-05, dated 15.7.2014

Last Updated 11th February, 2020

No. BERC-Regl-06/2013-05. - In exercise of powers conferred by Section 181 (1) of Electricity Act, 2003 and all powers enabling in this behalf, and in supersession of the Regulation and Appendix A of the Regulation issued under notification No. - BERC - Est. -1/07 (Part II)-732-04 published in the Bihar Gazette, Extraordinary on 15 th November, 2011, the Bihar Electricity Regulatory Commission hereby makes the following Regulations with regards to financial powers to the

various officers to carry out the function of the Commission.

1.

Short title and commencement.

- These regulations shall be called the Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2014. They shall come into force on the date of their publication in the official gazette.

2.

Definitions.

- In these regulations the words used shall have the following meanings:

(i)

State Government shall mean Government of Bihar.

(ii)

Commission shall mean Bihar Electricity Regulatory Commission

(iii)

Chairman shall mean Chairman of Bihar Electricity Regulatory Commission. The Chairman shall be the Chief Executive of the Commission (sub-section 84 of the Act).

(iv)

Head of department shall mean Chairman of the Commission or any other officer to whom such powers may be delegated by the chairman

(v)

Act shall mean the Electricity Act, 2003 and shall include any statutory amendment, modification and re-enactment thereof.

(vi)

Secretary shall mean Secretary of Bihar Electricity Regulatory Commission or any other officer of the Commission authorized by the Chairman to discharge the responsibility of the Secretary in his/her absence.

(vii)

Head of the office shall mean Secretary of the Commission or any other officer of the Commission to whom such financial powers may be delegated by the Chairman.

(viii)

Words and expressions used and not defined in these regulations but defined in the Act shall bear the same meaning as in the Act.

3.

Financial Powers.

- (i) All financial expenditures relating to the affairs of the Commission shall be made in accordance with the delegation of financial powers mentioned in Appendix-A to these regulations.

(ii)

The powers delegated shall be used with due care maintaining financial propriety and economy.

(iii)

Total value of work should not be split up to avoid sanction of higher authority.

4.

Power to amend.

- The Commission shall have powers to make suitable amendments to these regulations from time to time in accordance with requirements of the functioning of the Commission.

5.

Repeal and saving.

- The Bihar Electricity Regulatory Commission (Delegation of Financial Powers) regulation, 2011 and Appendix A of the regulations issued under notification No.- BERC-Est.-1/07 (Part II)-732-04 dated 15th November, 2011 and published on 18th Nov, 2011 in the Bihar Gazette, Extraordinary are hereby repealed.

(ii)

Notwithstanding such repeal, anything done or purported to have been done or any action taken or purported to have been taken under the repealed regulation before such repeal, shall be deemed to have been done or purported to have been done or taken or purported to have been taken under these regulations.

6.

Removal of difficulties.

- If any difficulty arises in giving effect to any of the provisions of these regulations, the Commission may, for reasons to be recorded in writing, pass any order as it may consider necessary not inconsistent with the provisions of the Act for removing the difficulties.

7.

Any item of expenditure not appearing in Appendix A (Delegation of Financial Powers) shall be dealt with as per State Govt. guidelines issued from time to time.

Bihar Electricity Regulatory Commission Delegation of Financial Powers Regulation, 2014.

Appendix - A

Sl No.

Item of Expenditure

Monetary limit upto which expenditure can be incurred.

Powers of the Chairman

Powers of the head of the department

Powers of the head of the office

Remarks

1

2

3

4

5

6

1.

Unspecified items of contingent Expenditure:

(a)

Recurring (not covered under any other item in these regulations).

Full power

Rs. 50,000/- per occasion

Rs.20,000/- per occasion

Subject to availability of fund in the Budget.

(b)

Non-recurring (not covered under any other item in these regulations)

Full Power

Rs. 1,00,000/- per occasion

Rs.50,000/- per occasion

Subject to availability of fund in the Budget

and observance of the procedure prescribed by the State Govt. for procurement of goods in Bihar Finance (Amendment) Rules, 2005 and any subsequent amendment made to it by the State Govt.

2.

Motor vehicle:

(a)

Purchase of vehicle

Full power

Nil

Nil

Subject to availability of fund and observance

of procedure prescribed by the State Govt. for procurement of goods as laid down in Bihar Finance (Amendment) Rules, 2005 and any subsequent amendment made to it by the State Govt.

(b)

Maintenance, Repair and replacement of parts

Full Powers

Rs. 50,000/-p.a. per vehicle

Rs. 25000/- p.a per vehicle.

Subject to availability of fund in the Budget

and conditions prescribed by the State Govt. regarding purchase

of Battery, Tyre & Tube and other such conditions laid down

by Govt. of Bihar in Finance Deptt. letter no. M4-18/2006-4082fo0(2) dated 24.06. 2006 and any subsequent amendment

made to it by the State Govt. from time to time.

(c)

Registration and insurance of vehicle

Full Power

Full Power

Full Power

(d)

POL

Full Power

Full Power within sanctioned limit per vehicle

per month

Full power within sanctioned limit of POL per

vehicle per month

State Govt. Finance Department order dated

09.10.2007 extending limit of POL per vehicle per month shall

apply in case of Chairman and Members of the Commission i.e, 250

liters per vehicle per month for official purposes and for

commuting from residence to office and back. However, the

expenditure on fuel for tour in connection with public hearing at

Divisional headquarter level including other field tours will be

out of this limit. For other officers it shall be 110 liters per

month per vehicle for official purposes and for commuting

residence to office and back. Expenditure on fuel for field tours

for various purposes will be out of this limit.

(e)

Condemnation of vehicles and their disposal

through auction

Full Power

Nil

Nil

Subject to fulfillment of norms prescribed by

the State Govt. for disposal of goods as laid down in Bihar

Finance (Amendment) Rules, 2005, read with Govt. of Bihar,

Finance Deptt. letter no. 04.11.2008-4665/fo0(2),

dated 09.06.2008 and any subsequent amendment made to it by the

State Govt.

3.

(i) Hiring of conveyance (for specific

occasion)

Full Power

Rs. 35,000/-per occasion

15,000/- per occasion

(ii) Hiring of conveyance (on regular basis)

Full Power

Nil

Nil

4.

Office Equipment Electric Appliances and computers:

(a)

Purchase of office equipment including electric and electronic appliances, intercom, calculators photocopiers, filing and indexing system, computer accessories, projectors, printers etc.

Full Power

Rs.75,000/- per occasion

30,000/- per occasion

Subject to observance of guiding principle as laid down by the State Govt. for procurement of goods in Bihar Finance (Amendment) Rules 2005 and any subsequent amendment made to it by the State Govt. and availability of fund in the Budget.

(b)

Purchase of Computers including personal computers.

Full Power

Rs.1,00,000/- per occasion

Rs. 50,000/- per occasion

- Do-

(c)

Repair of computers of all kinds and maintenance and repair of other equipments

Full Power

Rs. 25,000/- per occasion

10,000/- per occasion

(d)

Refill of Cartridge of Printer/Photocopier/Fax machine.

Full Power

Full Power

Full Power

5.

Furniture and fixtures:

(a)

Purchase of furniture

Full Power

Rs. 1,00,000/ on each occasion

Rs. 40,000/- on each occasion

Subject to observance of instructions of the State Govt. for procurement of goods as laid down in Bihar

Finance (Amendment) Rules, 2005 any subsequent amendment made to it by the State Govt. and availability of fund in the Budget.

(b)

Purchase of Air conditioner

Full Power

Rs.1,00,000/ on each occasion

Rs. 50,000/- on each occasion

-Do-

(c)

Repair of furniture and fixtures

Full Power

Rs. 30,000/- annual

Rs.15,000/- annual

6.

Purchase of stationery:

(a) Purchase of stationery stores

Full Power

Rs. 40,000/- on each occasion

Rs.15,000/- on each occasion

Subject to the condition as contained in Govt.

of Bihar Finance Department circular No. 195 dated 08.01.2003 and

any amendment subsequently made in the said provision by the

State Govt. shall automatically apply.

7.

Printing and binding, Publication and

Publicity

(a) Printing and Binding

Full Power

Rs.1,00,000/- on each occasion

Rs.30,000/- on each occasion

(b) Purchase of publications including purchase

of Govt. publication, non- Govt. publication, Books, periodicals, newspapers.

Full Power

Rs.1,00,000/- annual

Rs.40,000/- annual

(c) Publicity and Advertisement

Full power

Rs. 1,00,000/ on each occasion

Rs.30,000/- on each occasion

Advertisement shall be taken at approved rate

only and it shall be released with due care of financial propriety and economy.

8.

Telephone, Mobile and Internet charges:

(i)

(a) Sanction of residential telephone with

separate telephone lines or to allow the existing residential

telephone installed in the name of the officer or his/her spouse

as official with internet connectivity and facility of mobile

phone in case of officers appointed against post equivalent to

Dy. Secretary in Govt. of India in the scale of Rs.15,000-39,100 with Grade pay Rs. 7600 and above.

Full Power

Nil

Nil

On the basis of functional requirement and subject to ceiling of amount payable/reimbursable for land line, internet connectivity and mobile charge together prescribed by Govt. of India for different rank of officers as laid down in Govt. of India, Ministry of Finance, Department of Expenditure OM no. 7 (14)/ 2006-C&V/2006 dt. 14.11.2006 and amendment made it to from time to time. Payment of Bill within the prescribed limit will be made by Head of the Office/ Drawing and Disbursing Officer.

(b) Sanction of residential telephone/internet connection/mobile in case of officers below the grade of Dy. Secretary in GOI in the pay scale of Rs.15000-39100 with grade pay Rs. 7600.

Full Power

Nil

Nil

The ceiling amount shall be Rs. 800/- p.m (land line + internet + mobile). Once it is approved by the Chairman payment of Bills will be made by Head of the Office/ Drawing and Disbursing Officer.

(ii)

Office telephone and internet connectivity to Officers appointed against post equivalent to Dy. Secretary in GOI in the pay scale of Rs. 15,000 to 39100 with Grade pay of Rs. 7600 and Ombudsman may be allowed office telephone and internet connectivity on the basis of functional requirements.

Full Power

Nil

Nil

9.

Hiring of Building:

(a) Hiring of building for office accommodation

Full Power

Nil

Nil

Once decision is taken for hiring of building for office accommodation and monthly rent is decided by the Chairman, rent shall be paid by the head of the Office/DDO.

(b) For residential and other purposes

Full Power

Nil

Nil

Do

10.

Petty works and repair:

(a) Execution of petty works and special repairs

to office building (hired) including sanitary fittings, water supply and electric installations and repairs to such installations.

Full Power

Rs. 50,000/- on each occasion

Rs.25,000/- on each occasion

Subject to availability of fund in the Budget

and in case special repair is undertaken in hired building the expenditure incurred shall be adjusted against rent payable.

(b) Execution of petty works, special repairs and day to day maintenance of own Building

Full Power

Rs. 100,000/- on each occasion

Rs.50,000/- on each occasion

Subject to availability of fund in the Budget

11.

Legal charges:

(a) Hiring of legal consultants including appointment of counsel, arbitrator

Full Power

Nil

Nil

Once panel of advocates/counsels is approved and their remuneration payable is sanctioned by the Chairman, payment against their bills after proper verification shall be made by the head of the office/ Drawing and Disbursing Officer.

(b) Reimbursement of legal expenses incurred by Commission employees relating to discharge of their official duties

Full Power

Full Power

Full Power

12.

Hiring of Consultants

Full Power

Nil

Nil

Once sanction is granted and amount payable is decided at the level of Chairman, payment shall be made by the Head of the Office/DDO.

13.

Miscellaneous charges:

(a) Electric, Gas and water Charges

Full Power

Full Power

Full Power

(b) Municipal rates and Taxes

Full Power

Full Power

Full Power

(c) Freight and demurrage/wharfage charge

Full Power

Full Power

Full Power

14.

Engagement of Staff paid from contingencies:

Full Power

Nil

Nil

Once amount is approved by the Chairman, payment shall be made by the Head of the Office.

15.

Sanction of Honorarium:

Full Power

Nil

Nil

16.

Postal and courier charges:

Full Power

Full Power

Full Power

17.

Supply of liveries and washing allowance

Full Power

Full Power

Full Power

Subject to limitation of amount for each item prescribed by the State Govt. from time to time.

18.

Sanction of Tour

(a)

In case of group 'A' officers

Full Power

Nil

Nil

(b)

In cases of other officers and staff of the Commission

Full Power

Full Power

Full Power

(c)

Sanction of advance of TA if tour is sanctioned as at (a) & (b) above up to the limit and rate as prescribed by the State Govt.

Full Power

Full Power

Full Power

19.

Drawal of amount from Bank to replenish cash chest to meet day to day petty contingent expenses.

Full Power

Up to 75,000/- including unspent balance

Up to 50,000/- including unspent balance

The expenditure may closely be watched by the

Drawing and Disbursing Officer and cash payment may be made for

petty expenditure (below Rs. 500/-) only otherwise necessary

payment should be made through cheque.

20.

(a) Expenditure on refreshment for official meeting

Full Power

Rs. 70 per head with a ceiling of Rs. 7,000/-

per occasion

Rs. 70 per head with a ceiling of Rs. 35,00/-

per occasion

(b) working lunch during the

meetings/conferences/seminar/work shops

Full Power

Rs 200/- per head with a ceiling of Rs. 15,000/-

per occasion

Rs. 200/- per head with a ceiling of Rs. 7,000/-

per occasion

(c) Working lunch on holidays to officers &

staff

Full Power

Rs. 125/- per head with a ceiling of Rs. 5,000/-

per occasion

Rs. 125/- per head with a ceiling of Rs. 4000/-

per occasion

21.

Security and sanitation service:

Engagement of security and sanitation services

Full Power

Nil

Nil

Once engagement of services is approved by the

Chairman, payment will be made by Head of the Office/DDO.

22.

Reimbursement of medical Expenses

Full Powers including powers to grant relaxation

of provisions in deserving cases

Full Power as per Bihar Electricity Regulatory

Commission (Terms and conditions of services of Chairperson and

Members) Rules, 2003 in case of Chairperson and Members of the

Commission and in case of other officers and staff as per State

Govt. Medical Rules and orders

Full Power as per Bihar Electricity Regulatory

Commission (Terms and conditions of services of Chairperson and

Members) Rules, 2003 in case of Chairperson and Members of the

Commission and in case of other officers and staff as per State

Govt. Medical Rules and orders.

23.

Write-off irrecoverable losses of stores,
public money due to theft, fraud, negligence and depreciation in
the value of stores

Full Power

Nil

Nil

24.

Disposal of obsolete, surplus or
unserviceable stores

Full Power

Up to Rs. 50,000/-

Nil

Subject to obtaining report of condemnation of
the article by constituting suitable committee and to follow the
provisions of disposal of goods as laid down in Bihar Finance
(Amendment) Rules, 2005

25.

Re appropriation of fund

Full Power

Nil

Nil

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